

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, JULY 23, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 22, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0096239 ROCKLIN SIERRA APARTMENTS v. TATE, TREYVON

Status Conference re: Appointment of Counsel

Appearances of the parties are required at the hearing. The hearing shall be held on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

///

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

2. S-CV-0047142 LEIBUNDGUTH, BRIAN v. SCHOCKLEY, RICHA

This tentative ruling is issued by the **Honorable Charles D. Wachob**. If oral argument is timely requested, it will be heard on **July 23, 2026 at 8:30 a.m. in Department 2**. Department 2 is located at 101 Maple Street, Auburn, California 95603.

Motion to Tax Costs

Plaintiff moves to tax costs totaling \$89,271.42 from defendant's costs memorandum filed on March 27, 2026. More specifically, plaintiff moves to tax \$88,996.40 in expert costs and \$275.02 in certain filing fees. Defendant opposes the motion.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) A "prevailing party" is defined to include "a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).) Code of Civil Procedure section 1033.5 specifies allowable costs and prohibited costs. (Code Civ. Proc., § 1033.5, subds. (a) [allowable costs], (b) [disallowed costs].) Costs neither allowed nor disallowed "may be allowed or denied in the court's discretion" provided they are "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subds. (c)(4), (c)(2)–(3).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Id.* at pp. 774–76.) When the reasonableness of particular items is challenged, conclusory allegations do not satisfy the objecting party's burden. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) Here, as the jury returned a verdict for defendant as against plaintiff and judgment was entered accordingly on March 12, 2026, defendant is the prevailing party in this action and entitled to recover costs.

The court now address the challenged costs amounting to \$89,271.42.

Expert costs (\$88,996.40)

Plaintiff challenges all expert costs defendant claims because they are not allowable costs unless ordered by the court pursuant to Code of Civil Procedure section

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

1033.5(b)(1). A review of the court's file reveals defense experts were not court ordered.

Defendant presents evidence, however, that she made three statutory offers to compromise pursuant to Code of Civil Procedure section 998, the first of which was made on July 12, 2024, and that plaintiff declined all three offers. (Doyle Decl., ¶¶ 2–4 and Exhs. 1–3.) “If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer.” (Code Civ. Proc., § 998, subd. (c)(1).) “In determining whether the plaintiff obtains a more favorable judgment, the court or arbitrator shall exclude the postoffer costs.” (*Id.* at subd. (c)(2)(A).) Defendant has met her burden of establishing a statutory basis for expert costs. Accordingly, defendant may recover expert costs incurred after July 12, 2024.

The court must still determine that these costs are reasonably necessary for the defense of this matter and in a reasonable amount. (Code Civ. Proc., § 1033.5, subd. (c)(2), (3).) Defendant's opposition concedes certain expert costs she included in her costs memorandum pre-date the offer date of July 12, 2024, which a careful review of defendant's evidence confirms. Defendant voluntarily withdraws her request for \$2,600 in costs pertaining to Karen Flinn-Fowler, \$19,178.32 in costs pertaining to Edward Fatzinger, and \$1,102.50 in costs pertaining to Patrick DeLangis.

The court also observes that defendant is seeking costs totaling \$33,692.45 pertaining to witness Dr. Michael Fry. The court has carefully reviewed defense exhibits 4 and 5, which includes that Dr. Fry billed for 8 hours of trial testimony on May 5, 2026, along with travel time and travel expenses amounting to \$25,781.45 in one day. However, a review of the court file reflects that Dr. Fry testified for a mere 1 hour and 40 minutes on May 5, 2026. (Trial minutes, May 5, 2026, pp. 2–3.) The court finds the amount of costs incurred by this one witness on May 5, 2026 to be excessive and unreasonably incurred for the defense of this litigation and that a reduction is necessary. The court taxes expert costs relating to Dr. Fry in the amount of \$19,781.45.

Plaintiff also challenges costs pertaining to witness Patrick DeLangis, a witness defendant withdrew in 2024. While witness DeLangis did not testify at trial, defendant sufficiently explains these fees were reasonably incurred for assisting in trial preparation. The motion to tax costs is denied as to this witness.

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.**

Filing fees (\$275.02)

Plaintiff challenges several specific filing fees for three ex parte applications to continue trial, a stipulation and order, a remote appearance fee, and two substitution of counsel filings. Filing and motion fees are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) A remote appearance fee is neither allowable nor prohibited, so it may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Here, the filing fees appear to be proper charges, so the burden to show that they were not reasonable or necessary to the litigation is on the plaintiff. Plaintiff falls short of that burden. As remote appearances are commonly used in courts throughout the state and typically result in lower litigation costs generally, the court finds the remote appearance fee to be reasonably incurred and reasonably necessary for the litigation. The motion to tax filing fees is denied.

Based on the foregoing, plaintiff's motion to tax costs is granted in part. Costs are taxed in the amount of \$42,662.27 (\$22,880.82 as withdrawn by defendant and \$19,781.45 as taxed by the court). The motion is otherwise denied, and defendant is awarded costs in the total amount of \$69,531.63.

3. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

The petition to approve compromise of minor's claim is dropped from calendar as no moving papers were filed with the court.

4. S-CV-0053111 LEROY, JOSEPH v. PICKETT, RYAN

The motion to challenge plaintiffs' work product clawback is continued to **October 8, 2026, at 8:30 a.m. in Department 3.**

5. S-CV-0054631 PTAK, CRYSTAL v. THOMAS, KIRA

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Motion to be Relieved as Counsel

The motion to be relieved as counsel for plaintiffs Crystal Ptak and Olver Jouin by Leah Kestrel Finke is granted, effective upon the filing of proof of service of the signed order after hearing on the clients, Crystal Ptak and Oliver Jouin. (Code Civ. Proc. § 284, subd. (2); Cal. Rules of Court, rule 3.1362.) The court notes the motion does not

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

include relief for Kestrel Law PLLC and this ruling does not include any relief not properly noticed or requested.

6. S-CV-0055510 RAILEANU, ALIONA v. BMW OF NORTH AMERICA

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion for Attorney Fees, Costs, and Expenses

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because she achieved his litigation objectives and the parties stipulated to plaintiff's recovery of reasonable attorney's fees.

Defendant does not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 2 to the declaration of Ryan Youabian. The court observes instances where the attorneys and paralegals

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 13.5 hours are reasonable for Ryan Youabian, 0 hours are reasonable for “Reception,” 0.6 hours are reasonable for Jennifer Osorio, 0 hours are reasonable for Kelley McPhaul, 0.7 hours are reasonable for Christina Cordova, 0 hours are reasonable for Anthonyg, 0 hours are reasonable for Isaac, and 0.3 hours are reasonable for Markc.

The court must next address whether the requests for \$495 per hour by Ryan Youabian, \$50 for “Reception,” \$125 per hour by Jennifer Osorio, \$125 for Kelley McPhaul, \$125 for Christina Cordova, \$125 for Anthonyg, \$250 for Isaac, and \$250 for Markc are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court notes that neither the moving papers nor declaration filed in support of the moving papers define the above individuals’ title or job duties. Accordingly, the court analyzes the invoice and description column to determine everyone’s job duties and thus the appropriate hourly rate.

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$325 per hour by Ryan Youabian, \$50 for “Reception,” \$125 per hour by Jennifer Osorio, \$125 for Kelley McPhaul, \$125 for Christina Cordova, \$125 for Anthonyg, \$125 for Isaac, and \$125 for Markc are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$4,587.50 for attorney’s fees and costs in the amount of \$573.45 for a total amount of \$5,160.95.

///

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

7. S-CV-0055881 ZIERMAN, JEANNINE v. ANTISDEL, DENISE

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Defendant Braulio Escoto's Demurrer to Plaintiff's Complaint

Defendant demurs to plaintiffs' complaint on the grounds the complaint does not allege facts sufficient to state the causes of action and the complaint is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

First Cause of Action—Dependent Adult Abuse and Neglect

Abuse against an elder or dependent adult includes, among others, "neglect, abandonment, . . . or other treatment with resulting physical harm or pain or mental suffering." (Welf. & Inst. Code, § 15610.07, subd. (a)(3).) Elder means any California resident 65 years of age or older. (*Id.* at § 15610.27.)

Neglect is defined as either "(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise [or] (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise." (Welf. & Inst. Code, § 15610.57, subds. (a)(1)–(2).) This includes, but is not limited to:

- (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.
- (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.
- (3) Failure to protect from health and safety hazards.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

- (4) Failure to prevent malnutrition or dehydration.
 - (5) Substantial inability or failure of an elder or dependent adult to manage their own finances.
 - (6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.
- (*Id.* at subds. (b)(1)–(6).)

Importantly, neglect refers “not of the undertaking of medical services, but of the failure to provide medical care.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.) Also, the act does not provide liability for simple or gross negligence by health care providers. (Welf. & Inst. Code § 15657.2; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.) Instead, plaintiff must plead, and courts must address, four factors to determine whether defendants’ conduct constitutes neglect. (*Id.* at 406–07.) Specifically, “plaintiff must allege . . . facts establishing that defendant . . . (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . [and 4] the neglect caused the elder or dependent adult to suffer physical harm, pain or mental” (*Ibid.* [internal citations omitted].)

“Abandonment means the desertion or willful forsaking of an elder or a dependent adult by anyone having care or custody of that person under circumstances in which a reasonable person would continue to provide care and custody.” (Welf. & Inst. Code, § 15610.05.)

Physical abuse means assault, battery, assault with a deadly weapon or force likely to produce great bodily injury, unreasonable physical constraint or prolonged or continual deprivation of food and water, sexual assault, or use of a physical or chemical restrain or psychotropic medication in various scenarios. (Welf. & Inst. Code, § 15610.63.)

On the other hand, “Mental suffering means fear, agitation, confusion, severe depression, or other forms of serious emotional distress that is brought about by forms of intimidating behavior, threats, harassment, or by deceptive acts performed

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

or false or misleading statements made with malicious intent to agitate, confuse, frighten, or cause severe depression or serious emotional distress of the elder or dependent adult. (Welf. & Inst. Code, § 15610.53.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the first cause of action for dependent adult abuse and neglect. Accordingly, the demurrer is overruled as to the first cause of action.

Second Cause of Action—Financial Elder Abuse

Abuse against an elder or dependent adult includes, among others, financial abuse. (Welf. & Inst. Code, § 15610.07, subd. (a)(3).) Elder means any California resident 65 years of age or older. (*Id.* at § 15610.27.) Financial abuse occurs when an individual or entity does any of the following

- (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.
- (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.
- (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70.
- (b) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.
- (c) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.

(*Id.* at § 15610.30.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the second cause of action for financial elder abuse. Accordingly, the demurrer is overruled as to the second cause of action.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

Third Cause of Action—Breach of Fiduciary Duty

The elements for a breach of fiduciary duty claim are: (1) existence of a fiduciary relationship, (2) breach, and (3) damages proximately caused by the breach. (*Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395.) Fiduciary relationships exist as a matter of law in various legal relationships. (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 632.) One such fiduciary relationship is between spouses when entering into transactions with one another. (Fam. Code, § 721; *Lintz v. Lintz* (2014) 222 Cal.App.4th 1346, 1353.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the third cause of action for breach of fiduciary duty. Accordingly, the demurrer is overruled as to the third cause of action.

Fourth Cause of Action—Aiding and Abetting

A cause of action for aiding and abetting requires plaintiff to establish the defendant “(a) knows the other’s conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person’s own conduct, separately considered, constitutes a breach of duty to the third person.” (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1144.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the fourth cause of action for aiding and abetting. Accordingly, the demurrer is overruled as to the fourth cause of action.

Fifth Cause of Action—Constructive Trust

Constructive trust is not a cause of action. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76.) Accordingly, the demurrer is sustained with leave to amend as to the fifth cause of action.

Sixth Cause of Action—Accounting

An accounting cause of action requires plaintiff to show “that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting.” (*Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179.) Notably, “a fiduciary relationship

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

between the parties is not required to state a cause of action for accounting. All that is required is that some relationship exists that requires an accounting.” (*Ibid.*)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state an accounting cause of action. (Fam. Code, §§ 712, 1101.) Accordingly, the demurrer is overruled as to the sixth cause of action.

In sum, the demurrer is overruled as to the first through fourth and sixth causes of action and sustained with leave to amend as to the fifth cause of action. The complaint is also not uncertain and overruled on those grounds. Plaintiffs shall file and serve an amended complaint on or before **August 3, 2026**.

8. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to set aside default is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0056860 ELLIOT, LISA v. VOP SIERRA RIDGE

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3**.

Defendants’ Demurrer to Complaint

Defendants demurs to plaintiffs’ complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action and the third and fourth causes of action are duplicative. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

First Cause of Action—Elder Abuse by Neglect

Abuse against an elder or dependent adult includes, among others, “neglect.” (Welf. & Inst. Code, § 15610.07, subd. (a)(3).) Elder means any California resident 65 years of age or older. (*Id.* at § 15610.27.)

Neglect is defined as either “(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise [or] (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subds. (a)(1)–(2).) This includes, but is not limited to:

- (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.
- (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.
- (3) Failure to protect from health and safety hazards.
- (4) Failure to prevent malnutrition or dehydration.
- (5) Substantial inability or failure of an elder or dependent adult to manage their own finances.
- (6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

(*Id.* at subds. (b)(1)–(6).)

Importantly, neglect refers “not of the undertaking of medical services, but of the failure to provide medical care.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.) Also, the act does not provide liability for simple or gross negligence by health care providers. (Welf. & Inst. Code § 15657.2; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.) Instead, plaintiff must plead, and courts must address, four factors to determine whether defendants’ conduct constitutes neglect. (*Id.* at 406–07.) Specifically, “plaintiff must allege . . . facts establishing that defendant . . . (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . [and 4] the neglect caused the elder or dependent adult to suffer physical harm, pain or mental” (*Ibid.* [internal citations omitted].)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the first cause of action for elder abuse by neglect. Accordingly, the demurrer is overruled as to the first cause of action.

Third and Fourth Causes of Action—Wrongful Death (Negligence) and
Wrongful Death (Elder Abuse and Neglect)

Defendants next demur to the third and fourth causes of action on the grounds they are duplicative of each other. However, the causes of action are not duplicative but instead alternative theories of liability. Accordingly, the demurrer is overruled as to the third and fourth causes of action.

In sum, the demurrer is overruled in its entirety.

Defendants’ Motion to Strike Complaint

Defendants move to strike the following from plaintiffs’ complaint on the grounds the complaint does not allege a basis for such relief:

1. Page 37, lines 20–23 (paragraph 129)
 2. Page 39, lines 19–28 and page 40, lines 1–10 (fourth cause of action in its entirety)
 3. Page 40, line 15 (attorney’s fees)
 4. Page 40, lines 16–17 (exemplary and punitive damages)
 5. Page 41, line 1–4, (fourth cause of action in its entirety)
- (Code Civ. Proc., §§ 435, 436.)

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a); Welf. & Inst. Code, § 15657, subd. (c).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id. at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Id. at § 3294, subd. (c)(2).)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

Corporate employers can be held liable for punitive damages based on the acts of the employee when “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Id. at § 3294, subd. (b).)

On the other hand, attorneys’ fees and costs are recoverable “[w]here it is proven by clear and convincing evidence that a defendant is liable for . . . neglect as defined in Section 15610.57 . . . and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse. . . .” (Welf. & Inst. Code, § 15657.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state allegations for malicious, oppressive, intentional, and reckless conduct on behalf of defendants and prayers for attorney’s fees and exemplary and punitive damages. Moreover, plaintiffs allege facts sufficient to state the fourth cause of action for wrongful death as an alternatively pleaded theory of recovery.

Accordingly, defendants’ motion to strike is denied in its entirety. Defendants shall file and serve an answer on or before **August 3, 2026**.